



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF SARKOCY v. SLOVAKIA

(Application no. 62753/19)

JUDGMENT

STRASBOURG

20 May 2021

This judgment is final but it may be subject to editorial revision.

In the case of Sarkocy v. Slovakia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay, *President*,

Alena Poláčková,

Gilberto Felici, *judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 22 April 2021,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application against Slovakia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms (“the Convention”) on 11 November 2019.

2. The Government of the Slovak Republic (“the Government”) were given notice of the application.

THE FACTS

3. The applicant is a Slovak national. His details and information relevant to the application are set out in the appended table.

A. Proceedings no. 5 C 813/2008

4. On 8 December 2006 an action for protection of personality rights was lodged against the applicant with the Bratislava III District Court. The case was referred to the Pezinok District Court (“the District Court”) on 1 January 2008 where it was assigned no. 5 C 813/2008.

5. On 11 June 2014 the Constitutional Court found a violation of the applicant’s right to a hearing “within a reasonable time” in the proceedings before the District Court. It ordered the court to proceed without delay and granted the reimbursement of the applicant’s costs. It considered that the length of more than six years (from 1 January 2008 until the moment of its examination) was proof of inefficiency in the conduct of the proceedings. The Constitutional Court also noted that the applicant was responsible for some of the delays, albeit through no fault of his own: in particular, he had excused his absence from several hearings in accordance with the prescribed procedure and had lodged an appeal against a procedural decision, resulting in the adjournment of a hearing. It referred to his highly litigious profile (which involved the lodging of more than sixty constitutional complaints) and expressed doubts about the true nature of his motives. The Constitutional Court concluded that the finding of a violation, together with

the acceleratory effect of its judgment and the reimbursement of the costs, offered an appropriate redress and decided not to award any just satisfaction.

6. On 11 December 2017 the District Court dismissed the plaintiff's action and recognised the applicant's right to full reimbursement of the costs of the proceedings. The judgment became final on 2 March 2018.

7. The domestic law regulates the determination of procedural costs as a two-phased process. A court first decides on the right to reimbursement in the judgment on the merits. The precise amount of the claim is then determined by a separate decision of the first-instance court, adopted after the judgment on the merits becomes final.

8. In line with that procedure, the District Court asked the applicant to submit his calculation of the costs and informed him that should he failed to do so, the amount would have been determined based on the case file.

9. In his reply, the applicant stated that he wished to be granted costs and compensation for non-pecuniary damage.

10. On 10 September 2018 the District Court determined the costs in the amount of 0 EUR as they were not substantiated and any claim for non-pecuniary damage fell outside of the scope of the proceedings. The applicant appealed on 29 October 2018.

11. On 24 January 2019 the appeal against that decision was dismissed and the decision was served on the applicant on 18 February 2019.

12. Meanwhile, on 25 October 2018, the applicant lodged a complaint with the Constitutional Court, challenging the overall length of the proceedings before the District Court.

13. In its judgment of 5 September 2019, the Constitutional Court dismissed the complaint. It divided the impugned proceedings into two parts, namely the part on the merits of the case and the part on the costs. Regarding the former, the Constitutional Court observed that the proceedings had ended before the lodging of the constitutional complaint. As a result, it could no longer offer any protection to the applicant. As per the period concerning the determination of the costs, the Constitutional Court ruled that the District Court had proceeded without any delay.

B. Proceedings no. 10 C 34/2013

14. On 9 January 2009 the applicant lodged a counteraction against the plaintiff. By the District Court's decision of 4 February 2013, the counteraction was processed separately under case file no. 10 C 34/2013.

15. In its judgment adopted on 19 April 2017, the Constitutional Court found a violation of the applicant's right to a hearing "within a reasonable time" in proceedings no. 10 C 34/2013, ordered the District Court to proceed without delay, awarded the applicant 1,000 EUR in just satisfaction and granted him the reimbursement of costs.

THE LAW

I. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

16. The applicant complained that the length of proceedings no. 5 C 813/2008 was incompatible with the “reasonable time” requirement. He relied on Article 6 § 1 of the Convention, which reads as follows:

Article 6 § 1

“In the determination of his civil rights and obligations ... everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal ...”

17. The Government considered that the applicant was no longer a “victim” of a violation given its acknowledgement by the Constitutional Court, the acceleratory effect of its judgments and the financial compensation awarded. They further claimed that the applicant’s conduct justified absence of just satisfaction award in the judgment of 11 June 2014.

18. The Court notes that in its judgment of 11 June 2014, the Constitutional Court examined the length of proceedings no. 5 C 813/2008, which at the time lasted seven and a half years (before a single level of jurisdiction). It found that there had been a violation of the applicant’s right to a hearing within a reasonable time, granted him the reimbursement of the costs and ordered the District Court to proceed (see paragraph 5 above). It justified its conclusion by the fact that the applicant had been responsible for the overall length of the proceedings, drew attention to his litigious profile and raised doubts about his motives, suggesting that the applicant abused his procedural rights in many proceedings before the ordinary courts.

19. The Court observes a certain inconsistency in that reasoning since, on the one hand, the Constitutional Court found the applicant responsible for some of the delays and, on the other hand, held that he had not been at fault for them. Furthermore, the Court is not satisfied that the mere finding of a violation offered appropriate redress to the applicant (see, *a contrario*, *Šedý v. Slovakia*, no. 72237/01, § 92, 19 December 2006). The reimbursement of costs is not relevant to his status as a “victim” and the acceleratory effect of the Constitutional Court’s judgment had clearly failed to produce effect, given that the judgment on the merits was only delivered on 11 December 2017 and the decision on the costs even later. The applicant can accordingly still claim to be a “victim” of a breach of the “reasonable time” requirement.

20. As per the Constitutional Court’s judgment of 19 April 2017, the Court notes that it was adopted during another set of civil proceedings, on the applicant’s counteraction. Those proceedings are not the subject-matter

of the current application and therefore the Court is not tasked with the examination of the Constitutional Court's reasoning given in that judgment.

21. The period under the Court's consideration thus started on 8 December 2006 when the plaintiff's action was lodged and ended on 18 February 2019 when the decision on the costs of the proceedings was served on the applicant (see, *mutatis mutandis*, *Čičmanec v. Slovakia*, no. 65302/11, §§ 46-50, 28 June 2016). The proceedings consequently lasted for more than twelve years before a single judicial instance.

22. The Court reiterates that Article 6 § 1 of the Convention requires that all stages of legal proceedings concerning the determination of civil rights and obligations, not excluding stages subsequent to a judgment on the merits, be resolved within a reasonable time, and that this also includes in principle the stage of proceedings concerning costs (see *Robins v. the United Kingdom*, no. 22410/93, §§ 28-29, ECHR 1997-V, and *Macková v. Slovakia*, no. 51543/99/98, § 55, 29 March 2005). The reasonableness of the length of proceedings must be assessed in the light of the circumstances of the case and with reference to the following criteria: the complexity of the case, the conduct of the applicant and the relevant authorities and what was at stake for the applicant in the dispute (see *Frydlender v. France* [GC], no. 30979/96, § 43, ECHR 2000-VII).

23. In the leading case of *Obluk v. Slovakia* (no. 69484/01, 20 September 2006), the Court found a violation in respect of the length of proceedings lasting almost three years and eight months before one level of jurisdiction.

24. Having examined all the material submitted to it and having regards to its case-law on the subject, the Court considers that in the instant case the length of the proceedings was excessive and failed to meet the "reasonable time" requirement.

25. The complaint is therefore admissible and there has accordingly been a violation of Article 6 § 1 of the Convention.

II. APPLICATION OF ARTICLE 41 OF THE CONVENTION

26. Article 41 of the Convention provides:

"If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

27. Regard being had to the documents in its possession and to its case-law (see, in particular, *Obluk*, cited above), the Court considers it reasonable to award the sum indicated in the appended table.

28. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the application admissible;
2. *Holds* that this application disclose a breach of Article 6 § 1 of the Convention concerning the excessive length of civil proceedings;
3. *Holds*
 - (a) that the respondent State is to pay the applicant, within three months, the amount indicated in the appended table;
 - (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amount at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 May 2021, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina
Acting Deputy Registrar

Péter Paczolay
President

SARKOCY v. SLOVAKIA JUDGMENT

APPENDIX

Application raising complaints under Article 6 § 1 of the Convention
(excessive length of civil proceedings)

Application no. Date of introduction	Applicant's name Year of birth	Start of proceedings	End of proceedings	Total length Levels of jurisdiction	Domestic court File number Domestic award (in euros)	Amount awarded for any and all damage as well as cost and expenses per applicant (in euros) ¹
62753/19 11/11/2019	Ján SARKOCY 1953	08/12/2006	18/02/2019	12 years, 2 months and 11 days 1 level of jurisdiction	Constitutional Court I. US 433/2018 0	8,200

¹ Plus any tax that may be chargeable to the applicant.